

SH01

Return of allotment of shares

You can use the WebFiling service to file this form online.
Please go to www.companieshouse.gov.uk

☒ **What this form is for**
You may use this form to give
notice of shares allotted following
incorporation

☐ **What this form is NOT for**
You cannot use this form to give
notice of shares taken by a company
on formation of the company or
for an allotment of a new class of
shares by an unlimited company

THURSDAY



A11 *A501E9Y9* 11/02/2016 #133
COMPANIES HOUSE

1 Company details

Company number 09928343
Company name in full Caelius Bidco Limited (the "Company")

→ **Filing in this form**
Please complete in typescript or in
bold black capitals

All fields are mandatory unless
specified or indicated by *

2 Allotment dates ①

From Date d 03 m 02 y 2016
To Date d m y

① **Allotment date**
If all shares were allotted on the
same day enter that date in the
'from date' box. If shares were
allotted over a period of time,
complete both 'from date' and 'to
date' boxes

3 Shares allotted

Please give details of the shares allotted, including bonus shares
(Please use a continuation page if necessary)

② **Currency**
If currency details are not
completed we will assume currency
is in pound sterling

Class of shares (E.g. Ordinary/Preference etc.)	Currency ②	Number of shares allotted	Nominal value of each share	Amount paid (including share premium) on each share	Amount (if any) unpaid (including share premium) on each share
Ordinary	£	19999	1 00	1 00	
Preference	£	1322044	0 000005	1 00	

If the allotted shares are fully or partly paid up otherwise than in cash, please
state the consideration for which the shares were allotted

Continuation page
Please use a continuation page if
necessary

Details of non-cash
consideration

If a PLC, please attach
valuation report (if
appropriate)

Preference Shares - £1,322,044 satisfied by the issue of 1,322,044
preference shares of £0.000005 each in the capital of the Company at a
subscription price of £1 00 per preference share as part consideration
payable by the Company to the sellers in respect of the acquisition by
the Company of the entire issued share capital of Alpha FMC Group
Holdings Limited.

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Statement of capital

Section 4 (also **Section 5** and **Section 6**, if appropriate) should reflect the company's issued capital at the date of this return

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Statement of capital (Share capital in pound sterling (£))

Please complete the table below to show each class of shares held in pound sterling. If all your issued capital is in sterling, only complete **Section 4** and then go to **Section 7**

Class of shares (E.g. Ordinary/Preference etc.)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
Ordinary	1 00	0.00	20000	£ 20,000.00
Preference	1 00		1322044	£ 6 61022
				£
				£
Totals			1342044	£ 20006 61022

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Statement of capital (Share capital in other currencies)

Please complete the table below to show any class of shares held in other currencies.
Please complete a separate table for each currency

Currency				
Class of shares (E g Ordinary / Preference etc)	Amount paid up on each share ❶	Amount (if any) unpaid on each share ❶	Number of shares ❷	Aggregate nominal value ❸
Totals				

Currency				
Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ❶	Amount (if any) unpaid on each share ❶	Number of shares ❷	Aggregate nominal value ❸
Totals				

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Statement of capital (Totals)

	Please give the total number of shares and total aggregate nominal value of issued share capital	④ Total aggregate nominal value Please list total aggregate values in different currencies separately. For example £100 + €100 + \$10 etc
Total number of shares	1342044	
Total aggregate nominal value ④	£20006.61022	

① Including both the nominal value and any share premium

② Total number of issued shares in this class

③ E.g. Number of shares issued multiplied by nominal value of each share

Continuation Pages

Please use a Statement of Capital continuation page if necessary

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Please give the prescribed particulars of rights attached to shares for each class of share shown in the statement of capital share tables in **Section 4** and **Section 5**

Class of share	Ordinary, Preference
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Prescribed particulars ①	See continuation page
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Class of share	
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Prescribed particulars ①	
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Class of share	
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Prescribed particulars ①	
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① Prescribed particulars of rights attached to shares

The particulars are

- a particulars of any voting rights, including rights that arise only in certain circumstances,
- b particulars of any rights, as respects dividends, to participate in a distribution,
- c particulars of any rights, as respects capital, to participate in a distribution (including on winding up), and
- d whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder and any terms or conditions relating to redemption of these shares

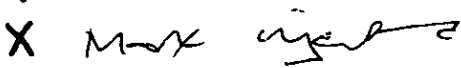
A separate table must be used for each class of share

Continuation page

Please use a Statement of Capital continuation page if necessary

8 Signature

I am signing this form on behalf of the company

Signature	Signature X  X
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This form may be signed by
Director ②, Secretary, Person authorised ③, Administrator, Administrative receiver, Receiver, Receiver manager, CIC manager

② Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership

③ Person authorised

Under either section 270 or 274 of the Companies Act 2006

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	Ordinary	
Prescribed particulars	(A) On a show of hands each member holding ordinary shares has one vote and on a poll each member holding ordinary shares has one vote for each ordinary share held (B) Any profits which the directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the ordinary shares pro rata and pari passu according to the number of ordinary shares held by each of them. (C) The ordinary shares have the right, as respects capital, to participate in a distribution (including on winding up) and shall be distributed amongst the ordinary shareholders pro rata according to the number of ordinary shares held, subject to the provisions in respect of Preference Shares contained in the Company's articles of association (D) The ordinary shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (subject to the terms of the Investment Agreement and the Facility Documents (each as defined in the Company's articles of association)) shall be authorised to determine the terms, conditions and manner of redemption of such shares	

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	Preference
Prescribed particulars	(A) Preference shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company (B) No dividend may be paid in respect of any preference share (C) In a winding-up of the Company from the assets of the Company available to the holders of shares the holders of preference shares (in respect of their preference shares only) shall receive in priority to any payment in respect of any other share an amount per preference share equal to (i) £1 (the "Principal Value") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the preference share until the earliest of (and including) the date of redemption of the relevant preference share and the date of winding-up of the Company. The Premium (as defined below) (if any) which has accrued as at each anniversary of the date of adoption of the Company's articles of association will be compounded with the Principal Value (as defined in the Company's articles of association) outstanding as at such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "Outstanding Value"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "Premium" for the purpose of the Company's articles of association. Upon payment of the amounts referred to in article 7.2.2(a) of the Company's articles of association the preference shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all preference shares under the foregoing provisions of article 7.2.2(a) of the Company's articles of association (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the preference shareholders pro rata by reference to the number of preference shares held. In the event of a Sale (as defined in the Company's articles of association), the holders of preference shares (in respect of their preference shares only) shall receive from the proceeds of the Sale available in respect of the shares being sold in priority to any other share an amount per preference share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Sale) and shall not be entitled to any further participation in the proceeds of the Sale. If the proceeds of the Sale or the Drag Sale (as defined in the Company's articles of association) available in respect of the share being sold are less than the amount which would be due to all preference shares under the foregoing provisions of article 7.2.2(b) of the Company's articles of association (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the preference shareholders pro rata by reference to the number of preference shares held.

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	Preference
Prescribed particulars	(C) As between the holders of preference shares, the assets or proceeds due to them under article 7 2 2(a) or (b) of the Company's articles of association (as the case may be) shall be allocated across all of the preference shares pari passu and pro rata to the number of preference shares held by each holder (D) Subject to the Companies Act 2006 and of every other statute for the time being in force concerning companies and affecting the Company, the preference shares may be redeemed in full at any time after the day following the date of adoption of the Company's articles of association by the Company giving notice of the redemption to the relevant holder(s) of preference shares (the "Redemption Notice") Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "Redemption Date") On any Redemption Date the Company shall pay to each registered holder of preference shares the amount payable in respect of such redemption On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Company's board in respect of any lost share certificate) to be cancelled If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder If there is more than one holder of preference shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of preference shares

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**Presenter information**

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name **Sean Hedges**Company name **Dickson Minto W S**Address **16 Charlotte Square**Post town **Edinburgh**

County/Region

Postcode

Country

DX **DX 199 Edinburgh**Telephone **0131 225 4455****Checklist**

We may return the forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register
- ☐ You have shown the date(s) of allotment in section 2
- ☐ You have completed all appropriate share details in section 3
- ☐ You have completed the appropriate sections of the Statement of Capital
- ☐ You have signed the form

**Important information**

Please note that all information on this form will appear on the public record.

**Where to send**

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1

**Further information**

For further information please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk